

**CHAPTER cxxxviii.**

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Wishaw Corporation. A.D. 1904.
[22nd July 1904.]

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the Schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict.
c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the Wishaw Corporation Order Confirmation Act 1904. Short title.

A.D. 1904.

SCHEDULE.

WISHAW CORPORATION.

Provisional Order to confer further borrowing powers on the Provost Magistrates and Councillors of the Burgh of Wishaw for their water undertaking to authorise the construction of main and branch sewers and the purchase of lands for sewage purification and for other purposes.

WHEREAS by the Wishaw Water (Additional Powers) Act 1898 (hereinafter called "the Act of 1898") the provost magistrates and councillors of the burgh of Wishaw (hereinafter called "the Town Council" then called "Commissioners") were authorised to provide an additional water supply to the burgh of Wishaw (hereinafter called "the burgh") and to make and maintain new and additional waterworks and to borrow money for those purposes :

And whereas by the Wishaw Water Act 1899 (hereinafter called "the Act of 1899") the Town Council were empowered to borrow further money for the purposes of their water undertaking and to enable them to provide compensation water and to construct a reservoir for that purpose as required by the Act of 1898 :

And whereas the Town Council have within the period prescribed by the Act of 1898 completed the said reservoir :

And whereas the money authorised to be borrowed by the Act of 1898 and by the Act of 1899 has been found to be insufficient for the said waterworks purposes and it is expedient that the Town Council should be authorised to borrow further money for their water undertaking as hereinafter provided :

And whereas the Town Council are the local authority within the burgh under the Public Health (Scotland) Act 1897 :

And whereas it is expedient for the better drainage of the burgh that the Town Council should be authorised to construct the main and branch sewers and relative works hereinafter mentioned and should further be authorised to purchase and acquire the lands

after mentioned for those purposes and for sewage purification purposes :

And whereas it is expedient that the Town Council should be authorised to borrow money for the purposes of the said works and for the purchase of lands and to impose assessments and charges for such purposes :

And whereas plans and sections showing the lines and levels of the main and branch sewers authorised by this Order and the lands to be taken for the purposes thereof and plans showing the lands to be acquired for the purposes of sewage purification and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands and other property required or which may be taken for the said purposes or under the powers of this Order were duly deposited in the offices at Glasgow and Hamilton respectively of the principal sheriff clerk of the county of Lanark and are hereinafter respectively referred to as the deposited plans sections and book of reference :

And whereas it is expedient that the further powers hereinafter mentioned should be conferred on the Town Council :

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

1. This Order may be cited as the Wishaw Corporation Order 1904 and shall come into operation from and after the date of the passing of the Act confirming the same which date is hereinafter referred to as “the commencement of this Order” and this Order and the Act of 1898 and the Act of 1899 may be cited together as the Wishaw Corporation Acts 1898 to 1904. Short title.

I.—WATER UNDERTAKING.

2. The Town Council for the purposes of their water undertaking may in addition to the money authorised to be borrowed by the Act of 1898 and the Act of 1899 borrow a further sum of money not exceeding fifty thousand pounds and section 63 (Power to borrow) of the Act of 1898 and section 2 (Further borrowing

Further
borrowing
powers.

A.D. 1904. powers) of the Act of 1899 shall be read and have effect as if the sum thereby authorised to be borrowed had been one hundred and seventy thousand pounds.

Application
of provisions
of Acts of
1898 and
1899.

3. All the powers and provisions of the Act of 1898 as amended and extended by the Act of 1899 are hereby extended and made applicable to the water undertaking purposes of this Order and to the additional money authorised to be borrowed by this Order for the water undertaking.

Priority of
existing
securities.

4. Nothing in this Order contained shall prejudice or affect the priority or other rights or remedies under any mortgages or securities or obligations granted by the Town Council under the Act of 1898 and the Act of 1899 before the commencement of this Order and then subsisting Provided that all securities granted by the Town Council for money borrowed or raised after the commencement of this Order under the Act of 1898 and the Act of 1899 as amended and extended by this Order shall rank together *pari passu* without preference or priority the one over the other.

II.—SEWERAGE.

Incorporation
of Acts.

5. The following Acts or parts of Acts so far as the same respectively are applicable to the sewerage purposes and are not inconsistent with the provisions of this Order are hereby incorporated with and form part of this Order:—

The Lands Clauses Acts :

The clauses and provisions of the Railways Clauses Consolidation (Scotland) Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof and the crossing of roads and other interference therewith and in construing the said clauses and provisions “the company” means the Town Council and “the railway” means the main and branch sewers and relative works connected therewith and “the centre of the railway” means any part of the said works.

Power to
make main
and branch
sewers.

6. The Town Council may subject to the provisions of this Order make and maintain in the lines and according to the levels shown on the deposited plans and sections the main and branch sewers hereinafter described together with all proper works buildings conduits drains pipes valves sluices and other appliances in connection therewith and may enter upon take and use such of the lands and heritages shown on the deposited plans

and described in the deposited book of reference as may be required for these purposes The said works are the following :— A.D. 1904.

(1) A main sewer commencing in the burgh of Wishaw at the junction of Manse Road and Marshall Street at a point fifteen yards or thereby south of the bridge over Whinney Burn near the Wishaw Ironworks proceeding thence along the said Manse Road in a southerly direction till it joins the road leading from Motherwell to Overtown known as the Wishaw Back Road thence along the said Wishaw Back Road in a westerly direction till it joins at Clydesdale the private road leading to Lower Carbarns and thence along the said private road leading to Lower Carbarns in a south-westerly direction and terminating at a point at the north-east corner of the field numbered 458 on the Ordnance sheet of Cambusnethan parish (second edition 1897) of the farm of Lower Carbarns all in the parish of Cambusnethan and county of Lanark :

(2) A branch sewer which will be wholly situate in the said parish and county commencing in the field last above mentioned and terminating in the River Clyde.

7. If there be any omission misstatement or erroneous description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Town Council after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to the sheriff for the correction thereof and if it appear to the sheriff that the omission misstatement or erroneous description arose from mistake he shall certify the same accordingly and he shall in his certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the principal sheriff clerk of the county of Lanark and kept by such principal sheriff clerk with the other documents to which the same relates and thereupon the deposited plans or book of reference (as the case requires) shall be deemed to be corrected according to such certificate and the Town Council may enter on take hold and use those lands and execute the works in accordance with such certificate.

Errors and omissions in plans and book of reference may be corrected by sheriff who shall certify same.

8. Subject to the provisions of this Order the Town Council may in the construction of the works by this Order authorised

Limits of lateral and

A.D. 1904.
vertical de-
viation.

deviate from the lines thereof as shown or referred to on the deposited plans to any extent not exceeding the limits of deviation defined on the said plans and when the line of work is shown as passing along any road and no limits of lateral deviation are marked on the plans the Town Council may in constructing any such work deviate laterally to any extent within the boundaries of such road and may deviate vertically from the levels shown on the deposited sections to any extent not exceeding five feet downwards or upwards Provided that except for the purposes of crossing over any stream or sewer no part of the said main and branch sewers shall be raised above the surface of the ground unless and except so far as shown on the deposited sections.

Power to
alter roads
&c. tempo-
rarily.

9. For the purposes and during the execution of the several works which the Town Council are by this Order authorised to make and in maintaining the same and subject to the provisions of this Order the Town Council may from time to time break up or cross over or under alter or stop up temporarily any streets roads highways lanes paths bridges railway sidings passages sewers drains watercourses gas pipes and water pipes and electric or telephonic apparatus in any of the lands shown on the deposited plans and specified in the deposited book of reference and which they may from time to time find it expedient for any of those purposes so to interfere with providing a proper temporary substitute before interrupting the traffic on any such street road highway or railway or the flow of water gas sewage or electricity in any such sewer drain watercourse pipe or apparatus and making full compensation to all persons injuriously affected thereby Provided that nothing in this section shall extend to authorise any interference with electric apparatus or other property of His Majesty's Postmaster-General Provided also that nothing in this section shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electric Lighting Act 1882 to which the provisions of section 15 of the said Act apply.

Power to
agree for ser-
vitudes &c.

10. The Town Council may subject to the provisions of this Order take by agreement and any person by the Lands Clauses Acts or otherwise enabled to sell lands may grant to them any estate servitude interest right or privilege (not being a servitude of water in which other persons than the grantor have an interest) in over affecting or belonging to lands at a price or yearly rent feu duty or otherwise but in the case of a person not enabled otherwise than by the said Acts to sell lands then subject and according to

the provisions relative to the taking of lands by agreement contained in the said Acts and for the purposes of this section any such estate servitude interest right or privilege shall be deemed to be lands within the meaning of those Acts. A.D. 1904.

11. The Town Council may acquire compulsorily or by agreement for the purposes of sewage purification and may use for such purposes the following lands shown on the deposited plans and described in the book of reference (that is to say) :—

Lands for
sewage puri-
fication.

Certain lands in the parish of Cambusnethan and county of Lanark being part of the field numbered 458 on the Ordnance sheet of Cambusnethan parish (second edition 1897) on the farm of Lower Carbarns on the estate of Wishaw extending to twelve acres or thereby bounded on the east by the private road leading from Wishaw Back Road to Lower Carbarns on the south and west by part of the said farm and lands of Lower Carbarns and on the north by part of the lands of Kirkhill Orchard on the said estate of Wishaw.

12. In addition to the lands authorised to be taken as aforesaid the Town Council may by agreement purchase any lands not exceeding five acres for the purpose of making depôts and other buildings and conveniences in connection with the works by this Order authorised. Provided that the Town Council shall not create or commit a nuisance on such last-mentioned lands.

Lands for ex-
traordinary
purposes.

13. For the protection of the county council of the county of Lanark and the middle ward district committee thereof who for their respective rights jurisdictions and interests under and in virtue of the Local Government (Scotland) Acts the Roads and Bridges (Scotland) Acts the Public Health (Scotland) Acts and the Lanarkshire (Middle Ward District) Water Acts 1892 to 1902 are in this section referred to as "the county authorities" the following provisions shall have effect :—

For protec-
tion of county
authorities.

- (1) The Town Council shall lay the main sewer in such a line along the Manse Road the Wishaw Back Road and the private road leading to Lower Carbarns as shall be reasonably approved by the county authorities and shall carry out the construction and maintenance thereof in such manner as will ensure the least possible interference with the sewers laid or which may be laid in said roads by the county authorities. If in the construction or maintenance of the said main sewer by the Town

A.D. 1904.

Council any damage is done to the sewers of the county authorities or if such sewers or the levels thereof are in any way interfered with the Town Council shall at their own expense make good such damage and restore the sewers of the county authorities to their original levels All work in any way affecting the sewers of the county authorities shall be carried out at their sight and to their reasonable satisfaction and the Town Council shall relieve the county authorities of all claims of any nature whatever arising out of or in consequence of their operations :

- (2) If by reason of the construction of the proposed main sewer by the Town Council it is found impossible to drain efficiently into the sewers of the county authorities at the nearest and otherwise most natural and convenient point any properties for the drainage of which the county authorities are responsible the Town Council shall be bound to receive the sewage from such properties into their main sewer and satisfactorily dispose of the same free of expense to the county authorities :
- (3) If in the construction of the works authorised by this Order it shall be found necessary to alter the existing lines or levels of the aqueducts conduits or lines of pipes or any of them of the county authorities or otherwise interfere with the same such alteration shall be carried out so as not to injuriously affect or interrupt the supply of water conveyed by the same and the Town Council shall give at least four weeks' previous notice to the clerk to the district committee before commencing any such works and the said works in so far as involving any alteration of or works affecting any aqueducts conduits or lines of pipes of the county authorities shall be executed at the expense of the Town Council and at the sight and to the reasonable satisfaction of the county authorities and according to plans to be approved by them before any such works are commenced and if the county authorities shall incur any expense for works rendered necessary by the alteration of any such aqueducts conduits or lines of pipes or any other interference therewith or required for obtaining or preserving accesses thereto the same shall be repaid by the Town Council Provided that if any diversion of any existing aqueduct

conduit or line of pipe is rendered necessary by reason of the Town Council's operations new pipes with all proper valves scour drains and other conveniences shall be provided laid fitted and jointed at the expense of the Town Council and at the sight and to the reasonable satisfaction of the county authorities and that before the existing pipes and others are interfered with :

- (4) The county authorities shall have at all times the right of access to their aqueducts conduits or lines of pipes altered or interfered with as aforesaid for the repair enlargement alteration and maintenance of the same and for laying additional pipes alongside of any existing aqueducts conduits or lines of pipes where the same are crossed by the sewers and other works by this Order authorised when they shall see fit but so as not to cause any damage to or interference with the sewers or other works of the Town Council :
- (5) The Town Council shall pay to the county authorities the costs and expenses which they may reasonably incur or be put to in superintending the works authorised by this Order so far as they involve interference with or alteration of works of the county authorities or with reference to any matters contained in this section and shall also pay to the county authorities any extra expense reasonably incurred they may at any time be put to by reason of the construction existence or maintenance of the said main sewer in respect of any constructions re-constructions alterations repairs connections conversions or otherwise upon or connected with their mains pipes tubes wires drains watercourses or apparatus and generally in carrying into effect any of the powers vested in the county authorities by any public general Act of Parliament :
- (6) The Town Council in opening or breaking up the surface of highways or footpaths within the jurisdiction of the county authorities shall not without the consent of the county authorities have more than one hundred lineal yards open or broken up at one time in any highway less than one quarter of a mile in length and in highways of greater length shall not at one time have open

A.D. 1904.

or broken up any continuous portion exceeding one hundred lineal yards in length with intervals of not less than two hundred and fifty lineal yards of clear space between any portions opened or broken up and the Town Council shall open break up or interfere with the surface of the highways and footpaths and obstruct the traffic thereon as little as may be and shall complete their operations and restore the surface to the reasonable satisfaction of the county authorities with all reasonable dispatch and maintain the same or the portion thereof for twelve months from the date of a certificate of the county authorities or their surveyor certifying such highway or footpath to have been satisfactorily restored. The Town Council shall efficiently fence off light and watch all portions of highways and footpaths affected by such operations until the surface has been restored as aforesaid and they shall deposit with the county authorities as security for the proper restoration of such highways and footpaths a sum equal to one shilling per yard of the surface intended to be disturbed by any of their works before commencing the same. The sum so deposited shall be repaid to the Town Council upon a certificate from the surveyor of the county authorities that such highways and footpaths have been restored to his satisfaction and in the event of such highways and footpaths not being so restored the sum so deposited shall so far as necessary be applied by the county authorities for that purpose :

- (7) If any difference shall arise between the Town Council and the county authorities as to any plans or sections or as to the mode of executing any works or as to any costs and expenses which may be incurred by the county authorities in connection with any of the matters referred to in this section such difference shall be determined by an engineer to be appointed failing agreement by the sheriff on the application of either party and the costs of any such reference shall be borne and paid as the referee shall direct.

For protec-
tion of
Caledonian
Railway
Company.

14. The following provisions for the protection of the Caledonian Railway Company (hereinafter called "the Caledonian Company") shall unless otherwise agreed between the Caledonian

Company and the Town Council apply and have effect (that is A.D. 1904.
to say) :—

- (1) The main sewer so far as affecting any bridge of the Caledonian Company shall be executed and thereafter maintained under the superintendence and to the reasonable satisfaction of the engineer of the Caledonian Company and according to plans and specifications to be previously submitted to such engineer and approved by him in writing. Provided that if such engineer shall not have expressed his approval or disapproval of such plans and specifications within fourteen days after the same shall have been submitted to him he shall be deemed to have approved thereof:
- (2) Such main sewer and any alteration which it may at any time be necessary to make in the same may so far as affecting any such bridge be executed by the Town Council or by the Caledonian Company at the option of the engineer of the Caledonian Company:
- (3) In case of any difference arising between the Town Council and the Caledonian Company in regard to any of the said works affecting the Caledonian Company or as to the mode of carrying out the works or otherwise in relation thereto so far as affecting such bridge as aforesaid such difference shall be referred to an engineer to be agreed on or failing agreement to an engineer to be appointed by the sheriff on the application of the Town Council or the Caledonian Company who shall decide the question in difference and such decision shall be final and the costs of any such reference shall be borne and paid as such engineer shall direct.

15. The powers of the Town Council for the compulsory purchase of lands for the purposes of this Order shall not be exercised after the expiration of three years from the commencement of this Order.

Limiting
time for
exercise of
compulsory
powers of
purchase.

16. If the main and branch sewers authorised by this Order are not completed within three years from the commencement of this Order then on the expiration of that period the powers by this Order granted to the Town Council for executing the same so far as not so completed or in relation thereto shall cease to be exercised except as to so much thereof as is then completed.

Period for
completion
of works.

A.D. 1904.

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Restriction
on taking
houses of
labouring
class.

17.—(1) The Town Council shall not under the powers of this Order purchase or acquire in any district within the meaning of the Public Health (Scotland) Act 1897 ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Secretary for Scotland ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied.

(2) If the Town Council acquire or appropriate any house or houses in contravention of the foregoing provision they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Secretary for Scotland by action in the court of session and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the court may if they think fit reduce such penalty.

(3) For the purposes of this section the expression “labouring class” means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any such persons who may be residing with them The expression “house” means any house or part of a house occupied as a separate dwelling.

Existing
sewers and
drains to be
connected
with works.

18. The Town Council may make and maintain all such sewers drains or pipes and appurtenances as may be necessary for connecting their existing sewers outfalls of sewage or drains with the main sewer before described and for conducting and discharging the water and contents thereof to and upon the lands which may be acquired as aforesaid for sewage purification purposes and for discharging the effluent therefrom by the branch sewer before mentioned and may make and maintain all necessary sluices valves pipes manholes offlets overflows or appurtenances required for carrying out the said purposes and may vary extend or enlarge all such existing sewers outfalls of existing sewers or drains for such purposes.

Assessment
and borrow-
ing powers.

19. The Town Council may for the purposes of constructing the aforesaid main and branch sewers authorised by this Order including the purchase of lands for the purposes thereof and the

purchase of lands for the purposes of sewage purification herein-
before mentioned and for carrying out the same raise and apply the
assessments which the Town Council is authorised to raise for such
purposes under the Burgh Police (Scotland) Act 1892 the Burgh
Police (Scotland) Act 1903 and the Burgh Sewerage Drainage and
Water Supply (Scotland) Act 1901 so far as regards the sewerage
and drainage purposes of the said last-mentioned Act and may
borrow such sums of money as may be necessary for those pur-
poses or any of them under the sewerage and drainage provisions
of the said Acts and the said provisions of the said Burgh Police
(Scotland) Act 1892 the Burgh Police (Scotland) Act 1903 and the
sewerage and drainage provisions of the said Burgh Sewerage
Drainage and Water Supply (Scotland) Act 1901 so far as the last-
mentioned Act applies shall be and the same are hereby made
applicable to such assessments and borrowing powers Provided
always that with respect to the repayment of money so to be
borrowed for the said purposes the period for the repayment thereof
shall be forty years from the time of borrowing.

A.D. 1904.
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20. All costs charges and expenses of and incident to preparing
for and obtaining this Order and incidental thereto shall be paid
by the Town Council out of any money in their hands or out of
money borrowed under this Order and in the event of such costs
being paid out of borrowed money the same shall be repaid within
five years after the commencement of this Order.

Costs of
Order.

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